

Andhra Pradesh Electricity Regulatory Commission (Consumer Grievances Redressal Forum, Vidyut Ombudsman and Consumer Assistance) Regulation , 2016) Fourth Amendment Regulation, 2023

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State of Andhra Pradesh - Act

Andhra Pradesh Electricity Regulatory Commission (Consumer Grievances Redressal Forum, Vidyut Ombudsman and Consumer Assistance) Regulation , 2016) Fourth Amendment Regulation, 2023

ANDHRA PRADESH

India

Andhra Pradesh Electricity Regulatory Commission (Consumer Grievances Redressal Forum, Vidyut Ombudsman and Consumer Assistance) Regulation , 2016) Fourth Amendment Regulation, 2023

Regulation 01 of 2023

Published in Gazette of India on 4 January 2023

Not commenced

[This is the version of this document from 4 January 2023.]

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Introduction

Whereas the Andhra Pradesh Electricity Regulatory Commission (hereinafter referred to as 'the Commission') notified the Andhra Pradesh Electricity Regulatory Commission (Consumer Grievances Redressal Forum , Vidyut Ombudsman and Consumer Assistance) Regulation,2016 (Regulation No.3 of 2016) (hereinafter referred to as 'the Principal Regulation') which was published in the AP Extraordinary Gazette on 16.02.2016.

Whereas the first , second and third amendments to the Principal Regulation were notified by the commission in the AP Extraordinary Gazette on 29.01.2021 (vide Regulation No.1 of 2021), 25.05.2022 (vide Regulation No.3 of 2022) and 23.12.2022 (vide Regulation No.7 of 2022) respectively.

Whereas the Commission felt the need to amend the clauses relating to the honoraria and the house rent allowances of the Vidyut Ombudsman and Chairperson / CGRF and remuneration of the Independent Member / CGRF appropriately in order to obviate the necessity of amending the regulation every time when the Commission felt the need of revising the remuneration of the Chairman and independent member of CGRFs and the Vidyut Ombudsman.

Accordingly, a draft amendment to the Principal Regulation along with a Public Notice was published on the Commission's website on 15.12.2022 inviting the stakeholders and interested parties to send their comments/ suggestions/ objections, if any, to the Commission within 14 days from the date of Public Notice. However, no comments/ suggestions/ objections were received on the proposed amendment.

Therefore, the Commission in exercise of the powers conferred on it by sub-section (1) of Section 181 of the Electricity Act , 2003 and clauses (r) and (s) of sub-section (2) of Section 181 read with sub-sections (5) to (7) of Section 42 of the Electricity Act, 2003 (Central Act 36 of 2003) and all other powers enabling it in that behalf, amends the Andhra Pradesh Electricity Regulatory Commission Consumer Grievances Redressal Forum, Vidyut Ombudsman and Consumer Assistance Regulation, 2016 as below :

Part - I GENERAL

1.

Short title , extent and commencement :

(i)

This Regulation may be called the Andhra Pradesh Electricity Regulatory Commission (Consumer Grievances Redressal Forum, Vidyut Ombudsman and Consumer Assistance) Regulation, 2016) Fourth Amendment Regulation, 2023.

(ii)

This Regulation shall come into force with effect from the date of its publication in the Andhra Pradesh Gazette.

(iii)

This Regulation shall extend to the whole State of Andhra Pradesh.

Part - II Amendments

2.

Clauses 6.1.a) and 6.1.b) of the Principal Regulation shall be replaced by the following clause :

" 6.1.a) The honorarium and the house rent allowance of the Chairperson shall be such as may be laid down by the Commission from time to time . "

With the replacement of the above clauses , the existing clauses 6.1.c) and 6.1.d) shall be renumbered as 6.1.b) and 6.1.c) respectively.

3.

Clause 6.2 of the Principal Regulation shall be replaced by the following clause :

" The remuneration of the Independent Member shall be such as may be laid down by the Commission from time to time. "

4.

Clauses 15.1.a) and 15.1.b) of the Principal Regulation shall be replaced by the following clause :

" 15.1.a) The honorarium and the house rent allowance of the Vidyut Ombudsman shall be such as may be laid down by the Commission from time to time . "

With the replacement of the above clauses , the existing clauses 15.1.c) and 15.1.d) shall be renumbered as 15.1.b) and 15.1.c) respectively .

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